

GZ: 2025-0.177.424 dated June 3, 2025 (Case Number: DSB-D550.1163)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

Criminal Decision

Accused: B*** Parking Management Ltd. (FN *9*3*1v)

The accused legal entity, based in 1*** Vienna, L***platz *3, has acted as the responsible party within the meaning of Art. 4 No. 7 of Regulation (EU) 2016/679 on the protection of natural persons in the processing of personal data, on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter: "GDPR"), OJ No. L 119 of May 4, 2016, p. 1 as amended, and has thereby committed the following administrative offense:

The Data Protection Authority repeatedly requested the accused as a party to the proceedings or responsible party in the official examination procedure under GZ: D213.1903 to respond, specifically with letters dated:

- June 14, 2023 (first request for a statement; GZ: D213.1903 – 2023-0.200.677), delivered via email to the mailbox "parking***@b***parkraumbewirtschaftung.com",
- August 3, 2023 (renewed request for a statement, first reminder; GZ: D213.1903 – 2023-0.572.728), delivered by registered mail to the address "1*** Vienna, L***platz *3", and
- October 11, 2024 (renewed request for a statement; GZ: D213.1903 – 2024-0.739.070), delivered by registered mail to the address "1*** Vienna, L***platz *3",

to respond in the above-mentioned examination procedure and expressly pointed out each time the obligation to cooperate in accordance with Art. 31 in conjunction with Art. 58 para. 1 lit. a and e GDPR, as well as the possible initiation of an administrative penalty procedure (in the event of insufficient cooperation). In the course of the reminder letters, the accused was informed of their lack of cooperation and the fact that the requests from the Data Protection Authority had been delivered to the accused and not followed. However, the accused has not responded to any of the above-mentioned requests from the Data Protection Authority to date.

Furthermore, the Data Protection Authority requested the commercial managing director of the accused, Mr. Peter J***, born on **. May 199*, who has represented the accused independently since April 4, 2023, with a letter dated:

- December 19, 2024 (summons notice; GZ: D213.1903 – 2024-0.928.547), delivered by registered mail to the address "1*** Vienna, L***platz *3",
- to appear before the Data Protection Authority for the purpose of an oral hearing in connection with the official examination procedure. The managing director also did not comply with this summons. The behavior or omission of the managing director as an externally authorized representative is directly attributed to the accused as a legal entity and is also regarded as a lack of willingness to cooperate with the Data Protection Authority as the competent supervisory authority.

The official examination procedure ultimately had to be concluded by the Data Protection Authority without the involvement of the responsible party with a decision dated March 17, 2025 (GZ: D213.1903 / 2025-0.192.907).

In light of this, the following arises:

The accused has, in any case, during the period from August 8, 2023, until the conclusion of the official examination procedure on March 17, 2025, violated their obligation to cooperate or duty to collaborate with the Data Protection Authority (as the competent supervisory authority) in accordance with Art. 31 GDPR by not responding to the above-mentioned requests for a statement and the summons for an oral hearing by their managing director. As a result, the accused, in their role as the responsible party, did not cooperate with inquiries from a supervisory authority in fulfilling their tasks.

Administrative offense according to:

Art. 31 in conjunction with Art. 83 para. 1 and 4 lit. a GDPR OJ L 2016/119, p. 1, as amended

Due to this administrative offense, a monetary fine is imposed in accordance with Art. 83 GDPR:

Fine of Euro

€ 16,000,-

According to

Art. 83 para. 4 lit. a GDPR OJ L 2016/119, p. 1,
as amended

Furthermore, you are to pay according to § 64 of the Administrative Penal Act 1991 – VStG:
Euro as a contribution to the costs of the penalty procedure, which is 10% of the fine,
but at least 10 Euro;

Euro as reimbursement of cash expenses for

The total amount to be paid (fine/costs/cash expenses) therefore amounts to
Euro

Payment deadline:

If no appeal is filed, this criminal decision is immediately enforceable. The total amount is to be paid
within two weeks after the decision becomes final to the account [here abbreviated], held by the Data
Protection Authority. Please indicate the business number and the date of the decision as the purpose
of use.

1,600,-

17,600,-

If payment is not made within this period, the total amount can be demanded. In this case, a flat fee of
five euros must be paid. If payment is still not made, the outstanding amount will be enforced.

Justification:

1.

The following relevant facts for the decision are established based on the conducted evidentiary
proceedings:

1.1.

Regarding the accused and relevant preliminary proceedings

1.1.1. The accused legal entity is a limited liability company registered in the commercial register and
is active in the business sector "Acquisition, rental, leasing of parking spaces." Since February 14,
2025, the accused has been registered in the commercial register as "B*** Parking Management
Ges.m.b.H. in Liquidation." Mr. Peter J***, born on **. May 199*, is the commercial managing director
and sole shareholder of the accused. Since February 14, 2025, he has been listed in the commercial
register as the liquidator.

1.1.2. The accused has repeatedly attracted media attention due to its peculiar business practices.
This business practice consists of recording motor vehicles that enter or even slightly pass through a
parking space monitored by the accused and subsequently confronting the affected individuals with
warning letters due to a disturbance of possession. Typically, an amount between EUR 400 and EUR
1,200 is demanded, along with a threat of legal action.

1.1.3. In connection with this business practice, the Data Protection Authority (hereinafter referred to
as "DSB") has repeatedly reported cases concerning unlawful video surveillance by the accused and
thus a violation of the fundamental right to confidentiality. Consequently, several complaint
proceedings have been conducted, in which the accused systematically refused to cooperate with the
DSB as the national supervisory authority, thereby committing violations of Article 31 GDPR. For this
reason, three administrative fines have already been imposed on the accused in relation to separate
complaint proceedings according to Article 77 GDPR in conjunction with § 24 DSG (regarding the case
numbers: D550.1123; 2024-0.701.699; D550.1124; 2024-0.701.701; D550.1128; 2024-0.715.538). All
administrative fines became final due to the lack of legal remedies (objections).

1.1.4. In response to the last administrative fine in this series, the accused contacted the DSB via
email on February 19, 2025. In this email, the accused stated that the original documents had not been
delivered to them and additionally requested the transmission of the file via email. The DSB responded
via email on March 3, 2025, offering the accused an appointment for file inspection at the DSB's
premises (case number: D550.1128; 2025-0.134.477). However, the accused did not appear at the
scheduled appointment and has not contacted the Data Protection Authority since then.

1.2.

Regarding the course of the official examination procedure for case number: D213.1903

1.2.1. As a result of the numerous complaints directed against the accused, all similar cases were concentrated in an official review procedure under file number: D213.1903, in order to handle them collectively for procedural economy reasons.

1.2.2. In the context of this review procedure, the accused was first requested to respond by letter dated June 14, 2023, via email to the email address provided on the website "parking***@b***parkraumbewirtschaftung.com" (file number: D213.1903; 2023-0.200.677). There was no response from the accused to this letter.

1.2.3. By letter from the DSB dated August 3, 2023, the accused was again requested to respond (file number: D213.1903; 2023-0.572.728). The request sent by registered mail to the address listed in the commercial register "1*** Vienna, L***platz *3" was deposited in a delivery facility; however, the accused never collected the letter and consequently did not respond to this request to date.

1.2.4. A further request for a response was made on October 11, 2024. In this letter, the accused was explicitly reminded of the obligation to cooperate and the possibility of initiating an administrative penalty procedure (file number: D213.1903; 2024-0.739.070). The letter was sent by registered mail to the address mentioned above and was demonstrably received on October 17, 2024, by an employee of the accused. The employee was personally known to the deliverer. There was again no response from the accused.

1.2.5. Subsequently, the sole authorized representative managing director of the accused, Mr. Peter J***, was summoned by notice dated December 19, 2024, to an oral hearing on January 15, 2025, at 9:00 AM at the premises of the DSB (file number: D213.1903; 2024-0.928.547). The notice was sent by registered mail to the address of the accused and was deposited in a delivery facility. However, Mr. Peter J*** did not appear at the scheduled appointment without prior notice.

1.2.6. The DSB ultimately completed the official review procedure without the participation of the accused and examined the processing in question based on the documents available to it. The procedure was concluded with a decision dated March 17, 2025 (file number: D213.1903 / 2025-0.192.907), prohibiting the processing of personal data through video cameras in parking and storage areas within the territory of the Republic of Austria with immediate effect and under the threat of enforcement.

1.3.

Regarding the course of the administrative penalty procedure in question

1.3.1. After the accused refused to cooperate in the aforementioned review procedure, an administrative penalty procedure was initiated against them even before the completion of the official review procedure. In this context, a letter from the DSB dated February 4, 2025, was sent requesting justification regarding the allegation of refusal to cooperate with the supervisory authority in accordance with Article 31 GDPR to the address listed in the commercial register of the accused (file number: D550.1163; 2025-0.062.174). The letter sent by registered mail was deposited in a delivery facility; however, the continuation of the text is not provided.

****Submission Facility Deposited and Not Resolved.**** In the summons, the accused was expressly informed that the administrative penalty proceedings would continue and be concluded even without their hearing if they did not participate in the investigation.

1.3.2. There was also no reaction from the accused in the present administrative penalty proceedings.

1.3.3. Due to the lack of cooperation from the accused in determining the worldwide revenue generated from the previous year, an estimation had to be made by the DSB. The accused was also expressly informed of this legal consequence in the summons for justification dated February 4, 2025. The accused generated revenue of up to EUR 2,000,000 in the previous financial year.

2.

The findings are based on the following evaluation of evidence:

2.1.

The findings regarding point 1.1.1. are based on an official extract from the commercial register dated March 21, 2025. The findings regarding point 1.1.2. are based on various media reports that came to the attention of the DSB, see exemplarily: https://www.i***post.at/****/parkplatznepp***. The affected

individuals have also informed the DSB with complaints and reports about the business practices of the accused. The findings regarding points 1.1.3. concerning the pending complaint proceedings at the DSB directed against the accused, as well as the penalty orders issued due to lack of cooperation, are based on the relevant administrative files: GZ: D124.1195/24 (penalty order in D550.1123); D124.0728/24 (penalty order in D550.1124); D124.1768/24 (penalty order in D550.1128). The finding regarding point 1.1.4. is based on the administrative penalty file for GZ: D550.1128.

2.2.

The findings regarding point 1.2. undoubtedly arise from the administrative file for GZ: D213.1903. The finding regarding the email address of the accused is based on an official search on the website of the accused (https://www.b***parkraumbewirtschaftung.com), while the finding regarding the address of the registered office is based on an official extract from the commercial register.

2.3.

The findings regarding point 1.3. undoubtedly arise from the present administrative penalty file. Furthermore, the accused has not made any submissions that would contradict the findings made above.

3.

Legally, it follows that:

3.1.

General

Article 83(4)(a) of the GDPR stipulates that in the case of violations of the provisions of Articles 8, 11, 25 to 39, 42, and 43 of the GDPR, fines of up to EUR 10,000,000 or, in the case of an undertaking, up to 2% of its total worldwide annual revenue from the previous financial year may be imposed, depending on which amount is higher.

According to § 22 Abs. 5 DSG, the authority to impose fines on natural and legal persons for violations of the DSG and the GDPR lies with the DSB. As the controller according to Art. 4 No. 7 GDPR for the processing of personal data by multiple image processing systems (video cameras), the accused is the addressee of the relevant obligations of the GDPR. In the specific case, the accused, as the controller, was subject to the obligation to cooperate under Art. 31 GDPR due to its party status in an official examination procedure before the DSB. This provision constitutes a penalized obligation for controllers according to Art. 83 Abs. 4 lit. a GDPR and will be examined in more detail below.

3.2.

On the Obligation of Cooperation of Controllers with the DSB

Controllers and processors, and if applicable, their representatives must cooperate with the supervisory authority in fulfilling their tasks upon request according to Art. 31 GDPR. This provision constitutes a penalized obligation for controllers according to Art. 83 Abs. 4 lit. a GDPR (cf. BVwG 10.03.2025, W287 2286005-1/15E).

From Art. 31 GDPR, in conjunction with the powers of the supervisory authority under Art. 57 and Art. 58 GDPR, both tolerance and cooperation obligations can be derived. The DSB must monitor and enforce the application of the GDPR for the entire territory of Austria ("in its territory") according to Art. 57 Abs. 1 lit. a GDPR. This is one of the central tasks of the DSB as the supervisory authority responsible for the Austrian territory. Furthermore, the DSB must fulfill any other tasks related to the protection of personal data according to Art. 57 Abs. 1 lit. v GDPR. For the fulfillment of these tasks, the DSB is granted both investigative powers and remedial powers (Art. 58 Abs. 1 and 2 GDPR).

The GDPR grants supervisory authorities, among other things, the authority to instruct controllers to provide all information necessary for the fulfillment of their tasks (Art. 58 Abs. 1 lit. a GDPR). The obligation to provide all information relates to all (knowledge) that the respective parties have available and is intended to prevent only partial information from being provided, thereby hindering the investigations of the supervisory authority. From this provision, in conjunction with Art. 31 GDPR, a cooperation obligation for the addressees of the norms arises (see also Recital 82 second sentence GDPR). In the event of insufficient cooperation, the EU legislator therefore introduced the possibility of

sanctioning in Art. 83 Abs. 4 lit. a GDPR.

Without the cooperation of controllers and processors, the competent supervisory authority cannot properly fulfill its legally mandated tasks. In this respect, the obligation to cooperate is comprehensive in the interest of effective supervision and enforcement of the norms of the GDPR and particularly includes the provision of known facts and documents, including evidence. Any refusal to cooperate... Cooperation with the DSB will be met with a monetary fine. The DSB explicitly points this out in every request.

Overall, Article 31 of the GDPR imposes an administrative obligation to cooperate on the accused; the provision somewhat pushes back the principle of official fact-finding. The necessity of a statement from the responsible party for the determination of the facts is irrelevant in this context. The obligation to cooperate at the request of the supervisory authority exists independently of this and is not dependent on a specific question or the outcome of the procedure in which the request is made (in particular, it is also not subject to the ex-ante assessment of the facts by the responsible party, cf. BVwG 10.03.2025, W287 2286005-1/15E). The fact that the DSB ultimately concluded the official examination procedure without the participation of the accused is therefore not relevant to the decision.

In the present case, the accused qualifies as the responsible party according to Article 4 (7) of the GDPR, thereby making the relevant obligations of the GDPR applicable. In light of the facts assumed to be proven, the accused has failed to fulfill the obligation to cooperate with the supervisory authority in the performance of its tasks. The accused was repeatedly requested over a period of more than a year to comply with this obligation so that the DSB could sufficiently clarify the facts and subsequently bring the examination procedure to a conclusion. Nevertheless, the accused has refused any cooperation with the DSB. Even a summons under the threat of a coercive fine for non-appearance was not complied with by the managing partner-director attributable to the accused.

As a result, the objective element of the offense under Article 31 of the GDPR is fulfilled by the lack of cooperation of the accused during the period in question.

3.3.

Regarding the subjective element of the offense

The CJEU has explicitly stated in its judgment of December 5, 2023, regarding the second preliminary question, as already assumed by the DSB in its previous case law, that only violations of provisions of the GDPR committed by the responsible party with fault, i.e., intentionally or negligently, can lead to the imposition of a monetary fine (cf. CJEU of December 5, 2023, C-807/21, para. 68).

Regarding the subjective element of the offense, it should be noted that the requirement of fault for the imposition of a monetary fine under Article 83 of the GDPR is to be interpreted autonomously under Union law and is to be assessed in particular in light of the case law of the CJEU. The CJEU also stated regarding the preliminary question concerning fault that the Member States were not granted any discretion by the Union legislator for national regulations in this context, as the material requirements are conclusively regulated in Articles 83 (1) to (6) of the GDPR (cf. also CJEU of December 5, 2023, C-683/21, para. 64 et seq.).

Regarding the question of whether a violation was committed intentionally or negligently and can therefore be punished with a fine, the CJEU clarified in its aforementioned judgment that such culpability is already present if the accused could not have been unaware of the unlawfulness of their behavior, regardless of whether they were aware that they were violating the provisions of the GDPR (see CJEU C-807/21, para. 76).

Referring to further case law, the CJEU also expressly clarified that the application of Article 83 GDPR to legal entities does not require an act or even knowledge on the part of the governing body of that legal entity (see CJEU of 05.12.2023, C-807/21, para. 77).

The responsibility and liability of a controller extends to any processing of personal data that is carried out by or on behalf of them. In this context, the controller must not only take appropriate and effective measures but must also be able to demonstrate that their processing activities are in compliance with the GDPR and that the measures they have taken to ensure this compliance are also effective (see CJEU C-807/21, para. 38, referring to Recital 74).

Applied to the present case, this means the following:

First, it should be noted that there were no indications during the investigation that the violations in question were committed by a person acting outside the scope of the business activity and on behalf of the legal entity. The accused also did not make any submissions in this regard, and it is evident from the file that at least one letter from the DSB was demonstrably received, while the other letters – in the absence of any other submissions – are considered delivered in accordance with § 17 para. 3 ZustG.

As a result, the accused gained knowledge of their lack of cooperation in the official examination procedure.

This is further supported by the reaction of the accused in the administrative penalty procedure regarding GZ: D550.1128, in which they contacted the DSB via email to request access to the files but did not respond to the return email and also did not appear at the agreed appointment. From the fine already imposed in this procedure due to lack of cooperation, the accused could undoubtedly conclude that cooperation in the procedure before the DSB is required and that a disregard for this obligation will be punished with a fine. Despite this knowledge, the accused also failed to cooperate in the present examination procedure.

It is irrelevant which specific natural person within the organization of the accused fulfilled the requirement of lack of cooperation. According to the CJEU, it is not necessary for the imposition of a fine against a legal entity that the DSB identifies a specific natural person who acted within the scope of the business activity and on behalf of the legal entity in its decision and attributes the actions of this person to the legal entity (see CJEU C-807/21, para. 60). The organs of a legal entity – specifically... the sole authorized managing director, who was summoned by notice dated December 19, 2024, to an oral hearing before the DSB – is in any case attributable to the responsible company (cf. Jahnel, Commentary on the General Data Protection Regulation Art. 4 No. 7 GDPR Rz 10).

During the course of the investigation, there were no indications that the accused was not at fault for the violation of the applicable administrative regulations. Rather, the accused should have ensured that she responded to the letters sent to her by the DSB within the deadline set for her (cf. recently BVwG of September 17, 2024, W298 2295130-1).

In light of the case law of the CJEU regarding the unlawfulness of her behavior, the accused could not have been unclear, regardless of whether she was aware that she was violating the provisions of the GDPR (cf. CJEU C-807/21, Rz 76 and 77; CJEU C-683/21, Rz 81 and 82 with references).

Given the three already imposed fines due to violations of the obligation to cooperate pursuant to Art. 31 GDPR, the accused not only had to consider it latent possible but had to assume that the repeated failure to provide the expressly requested cooperation violates GDPR provisions and would be met with another sanction. Although the specific procedure is solely to assess the violation at hand, the systematic failure to respond in numerous ongoing proceedings before the DSB, despite proven delivery, can be used as further evidence to substantiate the intent of the specific cooperation violation.

Furthermore, the accused was informed with each request about her obligation to cooperate and about the legal consequences in the event of insufficient cooperation with the DSB. She therefore considered it possible to be responsible for a (further) violation of Art. 31 GDPR and accepted this.

As a result, there is culpability in the form of intent (Art. 83 para. 2 lit. b GDPR). Thus, the subjective aspect of the offense is also fulfilled.

4.

Regarding the determination of the penalty, the following should be noted:

According to Art. 83 para. 1 GDPR, the supervisory authority must ensure that the imposition of fines for violations of the provisions of the GDPR subject to sanction (Art. 83 para. 4, 5, and 6 GDPR) is effective, proportionate, and deterrent in each individual case.

Specifically, Art. 83 para. 2 GDPR stipulates that when deciding on the imposition of a fine and its amount, certain criteria must be duly considered in each individual case.

The determination of the penalty within a statutory penalty framework is a discretionary decision that must be made according to the criteria established by the legislator (cf. VwGH September 5, 2013,

2013/09/0106). The criteria to be considered by the DSB for penalty assessment are conclusively defined in Art. 83 para. 2 GDPR.

The provision under § 19 para. 1 VStG does not apply, as the penalty assessment is also conclusively regulated by Art. 83 para. 2 GDPR and there is no discretion left for the member states (cf. CJEU December 5, 2023, C-807/21, para. 45; see also the recent decision of the BVwG of June 3, 2024, GZ: W292 2282284-1).

In the context of penalty assessment, the DSB applied the EDSA guidelines regarding the calculation of fines under the GDPR (cf. EDPB Guidelines 04/2022 on the calculation of administrative fines under the GDPR, Version 2.1 of May 24, 2023 – hereinafter "Fines Guidelines").

The penalty range in the specific case extends, according to Art. 83 para. 4 lit. a GDPR, up to an amount of EUR 10,000,000.

The relevant annual turnover of the accused could not be determined due to lack of cooperation.

Therefore, an estimate had to be made by the DSB. An official inquiry was made in the commercial register. Considering the available annual financial statement of B*** Parkraumbewirtschaftung Ges.m.b.H. as of December 31, 2023, the company is classified as "micro." Consequently, the accused is classified by estimation into the lowest category of the Fines Guidelines ("Undertakings with a turnover of up until € 2 million"). This classification duly considers the size of the company, particularly to ensure the proportionality of the fine. The penalty range in the specific case extends, according to Art. 83 para. 4 GDPR, up to an amount of EUR 10,000,000 (static penalty range). The dynamic penalty range (2% of annual turnover) does not apply.

In light of the facts assumed to be proven and considering the nature, severity, and duration of the violation (Art. 83 para. 2 lit. a GDPR), the intent of the violation (Art. 83 para. 2 lit. b GDPR), as well as the categories of personal data affected by the violation (Art. 83 para. 2 lit. g GDPR), the DSB assumes the seriousness of the infringement ("Seriousness of the infringement") to be between medium and high ("medium/high level of seriousness"). Due to the static range, this results in an initial amount of EUR 2,000,000 for further penalty assessment.

Subsequently, the (estimated) company size or economic capacity of the accused was considered in accordance with the guidelines, and an adjustment to 0.4% of the initial amount was made (which results in an amount of EUR 8,000).

This amount was ultimately increased for the following reasons:

Regarding the present case, the following aggravating factors were also considered in the penalty assessment:

- The accused has already been convicted for three relevant violations of the obligation to cooperate under Article 31 GDPR (Article 83(2)(e) GDPR).

With regard to the present case, the following was additionally considered as a mitigating factor during the sentencing:

- n/a (no indications of specific mitigating circumstances arose during the investigation)

In determining the penalty, considerations of special prevention and general prevention may also be taken into account according to the consistent case law of the Administrative Court (VwGH) (see VwGH 15.5.1990, 89/02/0093, VwGH 22.4.1997, 96/04/0253, VwGH 29.1.1991, 89/04/0061).

Furthermore, according to Article 83(1) GDPR, the supervisory authority must ensure that any fine imposed by the data protection authority for established violations is effective, deterrent, and proportionate.

Thus, in light of these requirements, the fine may be increased or reduced on a case-by-case basis. The imposition of the specific penalty was, in any case, necessary in terms of special prevention to deter the accused from committing further offenses, as the lower fines in the form of penalty orders from previous administrative fine proceedings evidently showed no effect. It became apparent that further and stronger remedial measures must be taken by the Data Protection Authority (DSB) to prevent similar violations by the accused in the future. Moreover, the imposition of a fine was also necessary in a general preventive sense to raise awareness among responsible parties and processors regarding their obligation to cooperate under Article 31 GDPR and to demonstrate that violations of the obligation to cooperate will not be ignored but will be met with increasingly stringent remedial measures.

The specific fine imposed in the amount of EUR 16,000 therefore appears to be appropriate in relation to the realized value of the offense, measured against the available penalty range of Article 83(4) GDPR (here up to EUR 10,000,000) and taking into account the relevant criteria for determining penalties under Article 83(1) and (2) GDPR. A (still) lower penalty amount would not meet the central requirements of a fine under Article 83(1) GDPR.